



Crimes Amendment Act 2002

No. 88, 2002

An Act to amend the *Crimes Act 1914*

Note: An electronic version of this Act is available in SCALEplus
(<http://scaleplus.law.gov.au/html/comact/browse/TOCN.htm>)

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Crimes Amendment Act 2002

No. 88, 2002

An Act to amend the *Crimes Act 1914*

[Assented to 23 October 2002]

The Parliament of Australia enacts:

1 Short title

This Act may be cited as the *Crimes Amendment Act 2002*.

2 Commencement

- (1) Each provision of this Act specified in column 1 of the table commences, or is taken to have commenced, on the day or at the time specified in column 2 of the table.

Commencement information		
Column 1	Column 2	Column 3
Provision(s)	Commencement	Date/Details
1. Sections 1 to 3 and anything in this Act not elsewhere covered by this table	The day on which this Act receives the Royal Assent	23 October 2002
2. Schedule 1, item 1	12 October 2002	12 October 2002
3. Schedule 1, item 2	Immediately after the commencement of Schedule 1 to the <i>Australian Crime Commission Establishment Act 2002</i>	1 January 2003

Note: This table relates only to the provisions of this Act as originally passed by the Parliament and assented to. It will not be expanded to deal with provisions inserted in this Act after assent.

- (2) Column 3 of the table is for additional information that is not part of this Act. This information may be included in any published version of this Act.

3 Schedule(s)

Each Act that is specified in a Schedule to this Act is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this Act has effect according to its terms.

Schedule 1—Forensic procedures

Crimes Act 1914

1 After Division 11 of Part 1D

Insert:

Division 11A—Operation of this Part in relation to overseas incidents

23YUE Definitions

In this Division:

incident includes a series of incidents.

permitted purpose means either or both of the following:

- (a) the purpose of identifying an unidentified person who died in or as a result of an incident in relation to which this Division applies;
- (b) the purpose of conducting a criminal investigation in relation to such an incident.

23YUF Application of this Division

- (1) This Division applies in relation to the following incidents:
 - (a) the bombings that occurred in Bali, Indonesia on 12 October 2002 (local time);
 - (b) any incident occurring outside Australia and Norfolk Island that the Minister determines, in writing, to be an incident in relation to which this Division applies.
- (2) Before making a determination under paragraph (1)(b), the Minister must be satisfied that:
 - (a) one or more Australian citizens or Australian residents have died in or as a result of the incident; and
 - (b) it is appropriate in the circumstances for this Division to apply in relation to the incident.

- (3) A determination under paragraph (1)(b) is a disallowable instrument for the purposes of section 46A of the *Acts Interpretation Act 1901*.

23YUG Use of information on DNA database system

- (1) Despite section 23YDAE, a person may access information stored on the DNA database system if:
- (a) the access is for the purpose of forensic comparison under a law of a State or Territory relating to forensic procedures and DNA databases; and
 - (b) the forensic comparison is for a permitted purpose.
- (2) Despite any law of a State or Territory relating to forensic procedures and DNA databases, a person may access information stored on a DNA database system if:
- (a) the access is for the purpose of forensic comparison under this Part; and
 - (b) the forensic comparison is for a permitted purpose.
- (3) Despite section 23YDAE or any law of a State or Territory relating to forensic procedures and DNA databases, a person may access information stored on a DNA database system if the access is for the purpose of disclosing that information under section 23YUI.

23YUH Permissible matching of DNA profiles

- (1) Despite section 23YDAF, a person may match a DNA profile on the unknown deceased persons index of the DNA database system with another DNA profile on that index if the matching is for a permitted purpose.
- (2) Despite any law of a State or Territory relating to forensic procedures and DNA databases, a person may match a DNA profile on the unknown deceased persons index of a DNA database system with another DNA profile on that index if the matching is for a permitted purpose.

23YUI Disclosure of information

- (1) Despite section 23YO, or any law of a State or Territory relating to forensic procedures and DNA databases, a person may disclose information stored on a DNA database system if:
 - (a) the disclosure is to:
 - (i) any law enforcement agency (within the meaning of the *National Crime Authority Act 1984*); or
 - (ii) a foreign law enforcement agency (within the meaning of that Act); or
 - (iii) the International Criminal Police Organisation; or
 - (iv) any other agency or body of the Commonwealth, a State or a Territory, or of a foreign country, prescribed by the regulations; and
 - (b) the information is relevant to the activities of that agency or body; and
 - (c) the disclosure is for a permitted purpose.
- (2) Despite section 23YO, or any law of a State or Territory relating to forensic procedures and DNA databases, a person may disclose information stored on a DNA database system if:
 - (a) the information concerns the result of a match of an unknown deceased person's DNA profile with a missing person's DNA profile; and
 - (b) the disclosure is made to a relative, guardian, spouse, de facto partner or friend of the deceased person.

23YUJ This Division does not restrict operation of this Part

This Division does not limit the circumstances in which a person may:

- (a) access information stored on a DNA database system; or
 - (b) match a DNA profile on an index of a DNA database system; or
 - (c) disclose information stored on a DNA database system;
- under this Part.

Note: See section 23YU on the effect of this Part on other laws.

23YUK Review of operation of this Division

- (1) The Minister must cause an independent review of the operation of this Division to be undertaken as soon as possible after the first anniversary of the commencement of item 1 of Schedule 1 to the *Crimes Amendment Act 2002* referred to in subsection 2(1) of that Act.
- (2) A person who undertakes the review must give the Minister a written report of the review.
- (3) The Minister must cause a copy of the report to be tabled in each House of the Parliament within 15 sitting days of that House after its receipt by the Minister.
- (4) In this section:

independent review means a review undertaken by persons who:

- (a) in the Minister's opinion, possess appropriate qualifications to undertake the review; and
- (b) include a nominee of the Attorney-General, a nominee of the Commissioner of the Australian Federal Police, a nominee of the Director of Public Prosecutions, a nominee of the Ombudsman and a nominee of the Privacy Commissioner.

2 Subparagraph 23YUI(1)(a)(i)

Omit "*National Crime Authority Act 1984*", substitute "*Australian Crime Commission Act 2002*".

[Minister's second reading speech made in—
House of Representatives on 22 October 2002
Senate on 23 October 2002]

(230/02)
